

Part 5. Employment Creation Information

Number of full-time employees in the enterprise in U.S. (excluding you, your spouse, sons, and daughters)

When you made your initial investment? Now Difference

How many of these new jobs were created by your investment? How many additional new jobs will be created by your additional investment?

What is your position, office, or title with the new commercial enterprise?

*See economic impact report

Briefly describe your duties, activities, and responsibilities.

What is your salary? \$ What is the cost of your benefits? \$

Part 6. Processing Information

Check One:

- ☐ The person named in **Part 1** is now in the United States, and an application to adjust status to permanent resident will be filed if this petition is approved.
- ☒ If the petition is approved and the person named in **Part 1** wishes to apply for an immigrant visa abroad, complete the following for that person:

Country of nationality:

Country of current residence or, if now in the United States, last permanent residence abroad:

If you provided a United States address in **Part 1**, print the person's foreign address:

If the person's native alphabet is other than Roman letters, write the foreign address in the native alphabet:

Are you in deportation or removal proceedings? ☐ Yes (Explain on separate paper) ☒ No

Have you ever worked in the United States without permission? ☐ Yes (Explain on separate paper) ☒ No

Part 7. Signature *Read the information on penalties in the instructions before completing this section.*

I certify, under penalty of perjury under the laws of the United States of America, that this petition and the evidence submitted with it is all true and correct. I authorize the release of any information from my records that U.S. Citizenship and Immigration Services needs to determine eligibility for the benefit I am seeking.

Signature Date

Mobile Phone Number () - E-Mail Address

NOTE: If you do not completely fill out this form or fail to submit the required documents listed in the instructions, you may not be found eligible for the immigration benefit you are seeking and this petition may be denied.

Part 8. Signature of Person Preparing Form, If Other Than Above (Sign below)

I declare that I prepared this application at the request of the above person, and it is based on all information of which I have knowledge.

Signature Print Your Name Date

Firm Name Daytime phone # with area code

Address

Certificate of Foreign Status of Beneficial Owner for United States Tax Withholding and Reporting (Individuals)

► For use by individuals. Entities must use Form W-8BEN-E.
► Information about Form W-8BEN and its separate instructions is at www.irs.gov/formw8ben.
► Give this form to the withholding agent or payer. Do not send to the IRS.

OMB No. 1545-1621

Do NOT use this form if:

- You are NOT an individual **Instead, use Form: W-8BEN-E**
- You are a U.S. citizen or other U.S. person, including a resident alien individual **W-9**
- You are a beneficial owner claiming that income is effectively connected with the conduct of trade or business within the U.S. (other than personal services) **W-8ECI**
- You are a beneficial owner who is receiving compensation for personal services performed in the United States **8233 or W-4**
- A person acting as an intermediary **W-8IMY**

Part I Identification of Beneficial Owner (see instructions)

1 Name of individual who is the beneficial owner CHAU, DUONG VAN		2 Country of citizenship VIETNAM	
3 Permanent residence address (street, apt. or suite no., or rural route). Do not use a P.O. box or in-care-of address. TO 4, KP. 1, T.T. CU CHI, H. CU CHI City or town, state or province. Include postal code where appropriate. HO CHI MINH VIETNAM			
4 Mailing address (if different from above) 779 STORY RD., #70 City or town, state or province. Include postal code where appropriate. SAN JOSE CA 95122		Country USA	
5 U.S. taxpayer identification number (SSN or ITIN), if required (see instructions) NONE		6 Foreign tax identifying number (see instructions)	
7 Reference number(s) (see instructions)		8 Date of birth (MM-DD-YYYY) (see instructions) 03/18/1977	

Part II Claim of Tax Treaty Benefits (for chapter 3 purposes only) (see instructions)

9 I certify that the beneficial owner is a resident of _____ within the meaning of the income tax treaty between the United States and that country.

10 **Special rates and conditions** (if applicable—see instructions): The beneficial owner is claiming the provisions of Article _____ of the treaty identified on line 9 above to claim a _____ % rate of withholding on (specify type of income): _____

Explain the reasons the beneficial owner meets the terms of the treaty article: _____

Part III Certification

Under penalties of perjury, I declare that I have examined the information on this form and to the best of my knowledge and belief it is true, correct, and complete. I further certify under penalties of perjury that:

- I am the individual that is the beneficial owner (or am authorized to sign for the individual that is the beneficial owner) of all the income to which this form relates or am using this form to document myself as an individual that is an owner or account holder of a foreign financial institution,
- The person named on line 1 of this form is not a U.S. person,
- The income to which this form relates is:
 - (a) not effectively connected with the conduct of a trade or business in the United States,
 - (b) effectively connected but is not subject to tax under an applicable income tax treaty, or
 - (c) the partner's share of a partnership's effectively connected income,
- The person named on line 1 of this form is a resident of the treaty country listed on line 9 of the form (if any) within the meaning of the income tax treaty between the United States and that country, and
- For broker transactions or barter exchanges, the beneficial owner is an exempt foreign person as defined in the instructions.

Furthermore, I authorize this form to be provided to any withholding agent that has control, receipt, or custody of the income of which I am the beneficial owner or any withholding agent that can disburse or make payments of the income of which I am the beneficial owner. **I agree that I will submit a new form within 30 days if any certification made on this form becomes incorrect.**

Sign Here

Signature of beneficial owner (or individual authorized to sign for beneficial owner)

Date (MM-DD-YYYY)

Print name of signer

Capacity in which acting (if form is not signed by beneficial owner)

1.11 Reliance by Company

Member understands that the representations, warranties, covenants and acknowledgements set forth herein constitute a material inducement to the Company entering into the sale and issuance of the Units to Member.

IN WITNESS WHEREOF, Member has entered into and executed this Investment Representation Statement as of the date indicated below.

MEMBER:

Print Name: CHAU, DUONG VAN

Title (if any): INVESTOR

Date Signed: 09/02/2016

IN WITNESS WHEREOF, the undersigned, the Company and M&D, intending to be legally bound hereby, has executed this Subscription Agreement as of the date set forth below.

Investor

Signature

CHAU, DUONG VAN

Print or Type Name

NONE

Social Security Number

Country of Citizenship: VIETNAM

Executed at: WESTMINSTER

City WESTMINSTER

State CALIFORNIA

this 2nd day of September, 2016

Current Mailing Address:

TO 4, KP 1, TT. CU CHI

H. CU CHI, HO CHI MINH

Country: VIETNAM

+84 91 380 7745

Telephone Number

408 294 8084

Facsimile Number

cvduong@bachkhoasaigon.edu.vn

E-Mail Address

Investor's Spouse (if any)

Signature

TRAN, HANG THI THUY

Print or Type Name

NONE

Social Security Number

Country of Citizenship: VIETNAM

Executed at: WESTMINSTER

City WESTMINSTER

State CALIFORNIA

this 2nd day of September, 2016

If known, address in U.S. where investor intends to reside after issuance of visa:

Telephone Number

Facsimile Number

CHECK HERE ONLY IF INVESTOR CURRENTLY IS A "UNITED STATES PERSON" (I.E., INVESTOR IS A CITIZEN OR RESIDENT OF THE UNITED STATES FOR UNITED STATES INCOME TAX PURPOSES):

INVESTOR _____

INVESTOR'S SPOUSE (IF ANY) _____

EXHIBIT A

CAPITAL ACCOUNT AND PERCENTAGE INTERESTS

Member's Name and Address	Capital Account	Class A Units	Class B Units	Percentage Interest	
M&D Regional Center, LLC 3100 E. Imperial Highway Lynwood, California 90262 Fax: (310) 631-1645	\$1,000	100	0	100%	
CHAU, DUONG VAN					
TO 4, KP. 1, TT. CU CHI					
H. CU CHI, HO CHI MINH,					
VIETNAM					

EXHIBIT B
SPOUSAL CONSENT

The undersigned is the spouse of CHAU, DUONG VAN and acknowledges that he/she has read the Operating Agreement for Beach Orangethorpe Hotel III, LLC, a California limited liability company, dated as of March 11, 2016 and the Joinder Agreement attached thereto (collectively the "Operating Agreement") and the related Investment Representation Statement of my spouse ("Statement"), and that the undersigned understands the provisions of the Operating Agreement and the Statement. All capitalized terms used herein shall have the same meaning as the Operating Agreement. The undersigned is aware that my spouse has executed and entered into the Operating Agreement, by the provisions of the Operating Agreement, his/her spouse has agreed to purchase one or more Membership Interests (as defined in the Operating Agreement) and to subject such Membership Interests to the Operating Agreement, including any community property interest or quasi-community property interest, in accordance with the terms and provisions of such Agreement. The undersigned hereby expressly approves of and agrees to be bound by the provisions of the Operating Agreement and the Statement in their entirety, including, but not limited to, those provisions relating to the purchase, sales and Transfers of Membership Interests and the restrictions thereon. If the undersigned predeceases his/her spouse when his/her spouse owns any Membership Interest, he/she hereby agrees not to devise or bequeath or otherwise Transfer whatever community property interest or quasi-community property interest he/she may have in any Membership Interest in contravention of the Operating Agreement or the Statement.

Date: 9/2/2016

Signature

TRAN, HANG THI THUY

Print Name

☐ Check this box if Spousal Consent is NOT applicable and sign and complete the section below.

Date: _____

Signature

Print Name

JOINDER AGREEMENT

The undersigned is currently a prospective member of Beach Orangethorpe Hotel III, LLC, a California limited liability company (the "**Company**"). The undersigned hereby consents to and agrees to be bound by the terms and conditions of that certain Operating Agreement for the Company dated as of March 11, 2016 attached hereto as Exhibit A (the "**Operating Agreement**").

The arbitration provision as contained in Section 10.9 of the Operating Agreement is hereby expressly incorporated into this Agreement.

Signed as of 9/2, 2016

Signature

CHAU, DUONG VAN

Print Name

Acknowledged and accepted by:

Beach Orangethorpe Hotel III, LLC
("Company")

By: _____

Name: Donald Chae

Title: Manager

Date signed:

M&D Regional Center, LLC, as the
Manager of the Company

By: _____

Name: Donald Chae

Title: Manager

Date signed: